

26STCV03602 26STCV03602

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Case Number: 26STCV03602 Hearing Date: September 28, 2026 Dept: 406

SHIN

P. Yang,

Plaintiff,

v.

kazn

am1300, et al.,

Defendants.

Case No.: 26STCV03602

Hearing Date: September 28, 2026

[TENTATIVE] order RE:

Defendants' motion to set aside

discovery orders

BACKGROUND

On

February 3, 2026, Plaintiff Shin P. Yang, individually ("Yang") and Shin P.

Yang dba Law Offices of Shin P. Yang ("Law Offices") filed this action against

Defendants KAZN AM 1300 ("KAZN"), Yvonne Liu ("Liu"), and Does 1 through 20

(collectively, "Defendants") asserting causes of action for (1) equitable

enforcement of oral settlement agreement, (2) promissory estoppel, and (3) breach of the implied covenant of good faith and fair dealing. The dispute originates from an earlier litigation regarding breach of an advertising agreement, Shin Yang, et al. v. KAZN 1300, et al. (19STCV11399). During the trial in the earlier action, the parties allegedly reached an oral settlement before the court, whereby Defendants were to pay Plaintiff \$250,000 and provide Plaintiff with one year of free radio advertising in exchange for dismissal of the lawsuit. Plaintiff alleges that Defendants have failed to perform their obligations under the settlement agreement.

Defendants

KAZN and Liu filed an Answer on May 21, 2026.

On

July 13, 2026, the Court, acting on an unopposed record, granted the following motions filed by Plaintiff on June 11, 2026:

(1) Motion

to Deem Requests for Admission Admitted by Defendant KAZN and Request for Monetary Sanctions;

(2) Motion

to Deem Requests for Admission Admitted by Defendant Liu and Request for Monetary Sanctions;

(3) Motion

to Compel Defendant Liu's Responses to Form Interrogatories and Request for Monetary Sanctions.

On

August 24, 2026, KAZN and Liu filed the three instant Motions to Set Aside and Vacate the Court's July 13, 2026, Order.

On September 15, 2026, Plaintiff filed Oppositions to these Motions. On September 18, 2026, Defendants filed Replies.

On

September 14, 2026, Plaintiff filed the operative First Amended Complaint ("FAC") adding a cause of action for promissory fraud.

LEGAL

STANDARD

Under

California law, once a court grants a motion to deem requests for admission admitted, the matters are conclusively established against the nonresponding party for purposes of the pending action. (*Inzunza v. Naranjo* (2023) 94 Cal.App.5th 736, 743.) However, Code of Civil Procedure section 2033.300 provides a mechanism for a party to seek leave of court to withdraw or amend deemed admissions. (Code Civ. Proc., § 2033.300.) To obtain relief, the moving party must satisfy two statutory requirements: first, the party must demonstrate that the admission was the result of mistake, inadvertence, or excusable neglect; and second, the party must show that the opposing party will not be substantially prejudiced in maintaining its action or defense on the merits. (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1418.) This statutory mechanism eliminates undeserved windfalls obtained through requests for admission and furthers California's policy favoring resolution of lawsuits on the merits. (*Ibid.*)

Furthermore, pursuant to Code of Civil Procedure section

473, subdivision (b), “[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect...”

[The application] shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd.

(b).) Moving parties have the initial

burden to prove excusable neglect by a preponderance of competent evidence. (*Kendall v. Barker* (1988) 197 Cal.App.3d 619, 624.)

Pursuant to Code of Civil Procedure section 473,

subdivision (d), “[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

DISCUSSION

Defendants

KAZN and Liu move for an order setting aside and vacating the Court’s July 13,

2026, Order that deemed admitted Plaintiffs' Requests for Admission, Set One ("RFAs") propounded upon KAZN and Liu, granted Plaintiff's request to compel Liu's responses to Form Interrogatories, Set One, and imposed monetary sanctions in the amount of \$1,380. Defendants argue that the underlying RFAs and Form Interrogatories were improperly served on Defendants via a defunct email address associated with Defendants' counsel's former law practice: glee@lawlpl.com. No party consented to receive electronic service at this address, all of Defendants' filings have identified the correct email address as Ginam.Lee@TrustableLaw.com, and California State Bar records reflect the Ginam.Lee@TrustableLaw.com as Defendants' counsel's correct email address. Even Plaintiff's proofs of service for the June 11, 2026, motions list Ginam.Lee@TrustableLaw.com as the address for service. Furthermore, Defendants did not receive Plaintiff's discovery motions and had no notice of the July 13, 2026, hearing. Defendants argue that the thirty-day response period never commenced as the discovery was not properly served, and the predicate for the Court's discovery orders was absent.

Defendants

add that, upon receiving the Court's July 13, 2026, Order via U.S. mail, they immediately and repeatedly sought Plaintiff's stipulation to set aside the order, but Plaintiff has refused to stipulate.

Finally, Plaintiff will not be substantially prejudiced by the relief—Defendants are prepared to serve verified responses and trial is scheduled for May 2027. Defendant Liu's responses to Requests for Admission and Form Interrogatories are attached to Defendants' counsel's declarations submitted in support of the Motions.

In

opposing these Motions, Plaintiff contends that service to "glee@lawlpl.com" was valid because Defendants' counsel failed to file a notice of change of electronic service address as required by California Rules of Court, rules 2.200 and 2.251(g), and that the address therefore remained presumptively valid. Plaintiff argues that Defendants' counsel's failure to update his electronic service address and his failure to monitor the court docket for several months constitute inexcusable neglect that precludes discretionary relief under section 473, subdivision (b). Plaintiff further contends that mandatory relief under section 473, subdivision (b) is unavailable because it applies only to defaults and dismissals, not to discovery orders. Plaintiff also argues

that defense counsel did not file an attorney declaration of fault with the moving papers—an assertion Defendants dispute by reference to the Court's own register of actions.

Plaintiff

asserts substantial prejudice on the ground that the deemed admissions conclusively established core elements of his claims—including breach of the oral settlement agreement, fraud intent, and a basis for punitive damages—and that vacating them would require re-litigation of resolved issues and would undermine Plaintiff's first amended complaint and pending asset discovery. Plaintiff points to the unpaid \$1,380 sanction as an additional component of prejudice and as evidence of a pattern of noncompliance.

Finally,

Plaintiff also argues that the tardiness and alleged inadequacy of Defendants' proposed responses—submitted on August 24, 2026—confirm a pattern of noncompliance with discovery obligations.

The

threshold question is whether Plaintiff's service of the discovery requests and motion papers to "glee@lawlpl.com" was legally effective. The Court finds it was not.

California

Rules of Court, rule 2.251(g)(1), provides: "[a] party or other person whose electronic service address changes while the action or proceeding is pending must promptly file a notice of change of address electronically with the court and must serve this notice electronically on all other parties and all other persons required to be served."

Furthermore, "[a]n electronic service address is presumed valid for a party or other person if the party or other person files electronic documents with the court from that address and has not filed and served notice that the address is no longer valid." (Cal. Rules of Court, rule 2.251(g)(3).) Here, the Court's own record establishes that every document Defendants have filed in this action—Demurrer, Answer, motions to set aside, and replies—was filed and electronically served from Ginam.Lee@TrustableLaw.com. Nothing has ever been filed from "glee@lawlpl.com." Defendants' counsel's address of record in this action never changed; the demurrer filed at the inception of the case bore Ginam.Lee@TrustableLaw.com, as has every filing since. Thus, Defendants' counsel had no obligation

to file a notice with the Court updating his email address. There cannot be a presumption attached to an email address that was not used in any of the filings.

Furthermore,

California Rules of Court, rule 2.251(b)(1) permits consent to electronic service through (A) a filed notice identifying the agreed address, or (B) affirmative consent through the court's electronic filing system. Plaintiff identifies neither. A pre-litigation email exchange does not

satisfy rule 2.251(b)(1) and does not designate an address for service in a subsequently filed action. Critically,

Plaintiff's own proofs of service for the June 11, 2026 discovery motions, filed and introduced by Plaintiff's counsel, listed Ginam.Lee@TrustableLaw.com as the service address, confirming that Plaintiff was aware of the correct address at the time the motions were served.

Given

that the discovery requests were not validly served, the thirty-day response period under Code of Civil Procedure sections 2033.280 and 2030.260 never commenced and the predicate required for the Court's July 13, 2026, order was not satisfied.

The

Court finds that relief under Code of Civil Procedure section 2033.300 is warranted. First, Defendants have

demonstrated that the admissions resulted from mistake, inadvertence, or excusable neglect. Second, the Court

does not find that setting aside the admissions will be prejudicial to Plaintiff. Trial is set for May 18,

2027; discovery remains open; no witness has become unavailable; and Defendant

Liu has served verified responses. The inability to obtain a procedural

windfall does not constitute substantial prejudice under California law. Moreover, Plaintiff cannot claim substantial prejudice when Defendants' failure to respond to discovery resulted from Plaintiff's improper service of the discovery requests.

Relief

is independently available under Code of Civil Procedure section 473,

subdivision (b), which provides that relief is available from "judgment,

dismissal, order, or other proceeding taken against the party through the

party's mistake, inadvertence, surprise, or excusable neglect." Defendants' non-receipt of the discovery request supplies a satisfactory excuse. Defendants

sought relief within days of learning of the July 13, 2026, Order, and following numerous unsuccessful attempts to avoid the motions through stipulation, filed formal motions on August 24, 2026, well within the six-month statutory period.

Finally, relief is available under Code of Civil Procedure section 473, subdivision (d) as the Court's July 13, 2026, Order presupposed that the discovery had been properly served. Given that the discovery was not properly served, the July 13, 2026, Order may be vacated under section 473, subdivision (d).

Because the Court sets aside the underlying orders and finds that Defendants acted with substantial justification in failing to respond to the discovery, the associated monetary sanctions award cannot stand. The \$1,380 sanctions award is vacated.

CONCLUSION

For the reasons provided herein:

Defendant

KAZN AM 1300's Motion to Set Aside and Vacate the Order Deeming Requests for Admission, Set One, Admitted is GRANTED. The Court's July 13, 2026 Order deeming admitted Plaintiff's Requests for Admission, Set One, propounded upon KAZN AM 1300 is hereby set aside and vacated. KAZN AM 1300 shall serve verified responses to Requests for Admission, Set One, on or before ten (10) days from the date of this Order, or shall be deemed to have timely served such responses if verified responses were already served prior to the date of this Order.

Defendant

Yvonne Liu's Motion to Set Aside and Vacate the Order Deeming Requests for Admission, Set One, Admitted is GRANTED. The Court's July 13, 2026 Order deeming admitted Plaintiff's Requests for Admission, Set One, propounded upon Defendant Liu is hereby set aside and vacated. Liu shall serve verified responses to Requests for Admission, Set One, on or before ten (10) days from the date of this Order, or shall be deemed to have timely served such responses if verified responses were already served prior to the date of this Order.

Defendant

Yvonne Liu's Motion to Set Aside and Vacate the Order Compelling Responses to Form Interrogatories, Set One, and Awarding Monetary Sanctions is GRANTED. The Court's July 13, 2026

Order granting Plaintiff's motion to compel Defendant Liu's responses to Form Interrogatories, Set One, is hereby set aside and vacated. Liu shall serve verified responses to Form Interrogatories, Set One, on or before ten (10) days from the date of this Order, or shall be deemed to have timely served such responses if verified responses were already served prior to the date of this Order.

The monetary

sanctions award of \$1,380 imposed by the July 13, 2026 Order is hereby vacated.